MINUTES OF A PUBLIC HEARING & BUSINESS MEETING OF THE PINEYWOODS GROUNDWATER CONSERVATION DISTRICT HELD ON THE 10th DAY OF FEBRUARY, 2025

On the 10th day of February, 2025, 12:00 p.m. at Commercial Bank, 215 E. Main St., Nacogdoches, Texas, the Board of Directors of the Pineywoods Groundwater Conservation District convened in a Public Hearing & Regular Business meeting at which time the following items were discussed and action taken with the following members thereof, to wit:

Public Hearing

Open Public Hearing: President – Jimmy Mize, 12:05
Public Comments: None
Close Public Hearing: 12:06

Business Meeting

1 **Call to Order & establish a quorum:**
Called to order: President – Jimmy Mize
Start time: 12:06
Prayer: Roger Russell
Board Members Present:

President – Jimmy Mize	Treasurer – Tommy Carswell
Secretary – Gloria Montes	Director – Stephen Raley
Director – Roger Russell	Director – Greg Grigsby

Absent: Vice-President – Kevin Gee
Also present:
PGCD General Mgr. – John McFarland
PGCD Admin. Assistant – Wil Blough
Dr. Bill Hutchison, P.E., P.G.
Joe Dominick – WattBridge Longleaf Generating Station

2 **Public Comments:** None

3 **Approval of the minutes of the meeting, November 18, 2024:**
a. **Discussion:** None
b. **Motion to approve:** Stephen Raley **Second:** Greg Grigsby
c. **Motion Carried?** Yes

4 **Review and possible approval of application for new permits by WattBridge Longleaf Generating Station:**
a. **Discussion:** Roger Russell abstaining because he is the driller.
GM is recommending approval of the application for 2 permits at 40 million gallons per year, based on data provided.
b. **Motion to approve:** Tommy Carswell **Second:** Greg Grigsby
c. **Motion carried?** Yes

5 **Presentation by Dr. Bill Hutchison, P.E., P.G.**
a. **Notes & Discussion:** Bill discussed the need for adjusting the rules to include a Hydrologist report at a lower level than currently required. Recommended the report be required for all wells with 10″ minimum casing size and 50 million gallons aggregate per year permitted volume or higher.

6 **Review and possible approval of recommended changes to PGCD rules & policies:**
   a. **Discussion:** Motion to adjust rules as recommended by Dr. Hutchison as well as to charge the well applicant for district cost to review the report for a sum not to exceed $1,000. Included in motion to change 14g to change government code section to 2001 and add reference to Texas Water Code section 36.418; 14h to "include conditions that would require installation of monitoring wells accessible to District staff, outside of area of influence of well application". Also, part of motion, add the following; "in order to comply with Senate Bill 1893 and Government Code Chapter 620, PGCD prohibits the use of the social media service "TikTok" and any other successor application developed by ByteDance as well as all other software, applications, developers, hardware, equipment and manufacturers on the prohibited technologies list on District equipment" to the Networking Acceptable Use Policy.
   b. **Motion to approve:** Tommy Carswell **Second:** Stephen Raley
   c. **Motion carried?** Yes

7 **General Manager's Financial Report: (Review bills, banking & other financials)**
   a. **Discussion:** Presented letter sent by our attorney to one customer for late permit renewal and possible future action.
   b. **Motion to approve:** Tommy Carswell **Second:** Greg Grigsby
   c. **Motion carried?** Yes

8 **Review & possibly approve 4th quarter 2024 investment report:**
   a. **Discussion:** None
   b. **Motion to approve:** Tommy Carswell **Second:** Greg Grigsby
   c. **Motion carried?** Yes

9 **General Manager's District Report:**
   a. **Well Report:** New Exempt - 10**,** Non-Exempt – 9, Oil & Gas – 2, pending - 21
   b. **District updates:** Attended webinar on investments provided by TexPool. Attended lunch with several area GCD managers. Attended Regional Water Planning Group D Meeting, TCDRS webinar. Measured static water levels for annual report. Assisted public with water issues. Consulted with drillers about regulation and well site limitations.

10 **Review annual static well level report:**
   a. **Discussion:** Static levels up for the most part.

11 **Review and possibly approve Annual Management Report:**
   a. **Discussion:** None
   b. **Motion to approve:** Stephen Raley **Second:** Roger Russell
   c. **Motion carried?** Yes

12 **Announcement of the date and location of the next quarterly business meeting:**
   a. **Tentative Date:** 1:30 p.m., May 5, 2025 at Kurth Lake Lodge.
13 **Adjourn:**
   a. **Closed by & Time:** President - Jimmy Mize, 1:30

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Jimmy Mize, President Gloria Montes, Secretary